



CHAPTER xi.

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and forty-one to the thirtieth day of September one thousand nine hundred and forty-two and for other purposes.

[2nd July 1941.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council (Finance Consolidation) Act 1912 as amended or extended by subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period"):

2 & 3 Geo. 5.
c. cv.

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and forty-one regulated by the London County Council (Money) Act 1940 (hereinafter referred to as "the Act of 1940"):

3 & 4 Geo. 6.
c. xxii.

And whereas emergency provisions were enacted in the Act of 1940 with reference to the expenditure of money on capital account and the lending of money by the Council for any purpose arising out of war damage or in connection with measures rendered necessary or expedient by the existence of a state of war in addition to the amounts specified in any annual money Act:

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and forty-one to the thirtieth day of September one thousand nine hundred and forty-two (hereinafter referred to as "the financial period 1941-1942") otherwise than under the last-mentioned provisions of the Act of 1940 should be regulated as by this Act provided:

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1941-1942 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council:

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1941-1942 are set out in Part I of the schedule to this Act:

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1941-1942 are set out in Part II of the said schedule:

1 Edw. 8 &
1 Geo. 6.
c. xlviii.

And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 may authorise the Council to expend on capital account or to lend during the financial period 1941-1942 are set out in Part III of the said schedule:

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the Act of 1940 authorised to expend or lend but have not before the first day of April one thousand nine hundred and forty-one expended or lent:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the London County Council (Money) Act 1941 and shall be read and have effect as one with the principal Act.

Short title
and
construction.

2. In and for the purposes of this Act and except where the context otherwise requires—

Interpreta-
tion.

“ the Act of 1940 ” means the London County Council (Money) Act 1940;

“ the Council ” means the London County Council;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act;

“ the financial year ” means the period from the first day of April one thousand nine hundred and forty-one to the thirty-first day of March one thousand nine hundred and forty-two both dates inclusive;

“ the following six months ” means the period from the first day of April one thousand nine hundred and forty-two to the thirtieth day of September one thousand nine hundred and forty-two both dates inclusive;

“ the financial period 1941-1942 ” means the financial year and the following six months; and

“ the schedule ” means the schedule to this Act.

3.—(1) The purposes for which during the financial period 1941-1942 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expenditure
on capital
account
during
financial
period
1941-1942.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those mentioned in the sixth and seventh columns respectively of Part I of the schedule in relation to the said purposes respectively.

4. The sums which during the financial period 1941-1942 the Council may lend under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act and which the bodies and persons mentioned in that section are authorised to borrow from the Council shall as regards the financial year and the following six months respectively be sums which except as by the principal Act

Amount
authorised to
be lent to and
borrowed by
local
authorities and
others during
financial
period
1941-1942.

otherwise provided shall not exceed those specified in the second and third columns respectively of Part II of the schedule in relation to such bodies and persons respectively.

Amount of further expenditure and loans which Treasury may authorise in case of insufficiency.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 to expend on capital account or to lend during the financial period 1941-1942 in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Periods for repayment of loans to certain bodies and persons.

6.—(1) Any money lent by the Council to governors or managers of educational institutions (including special and approved schools) or to committees of school treatment centres or to governors or committees of voluntary hospitals and hostels in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective dates of lending the same as the Council with the approval of the Treasury may determine.

2 & 3 Geo. 6.
c. xxxi.

(2) Any money lent by the Council to any bodies or persons in pursuance of the provisions of the Civil Defence Act 1939 shall be repaid to the Council within a period not exceeding ten years as prescribed by that Act.

Saving for emergency provisions of Act of 1940.

7. Nothing in this Act shall alter or affect the operation of section 7 (Emergency expenditure or lending for war damage &c.) of the Act of 1940.

Saving for emergency powers of Treasury.

2 & 3 Geo. 6.
c. 62.
3 & 4 Geo. 6.
c. 20.

8. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing conferred by this Act without such consent.

The SCHEDULE referred to in the foregoing Act.

PART I.

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1941 TO 30TH SEPTEMBER 1942 FOR CAPITAL EXPENDITURE.

(1) Acts for the Purposes of which Money may be expended.	(2) Purposes of Expenditure.	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			(6) Estimated Requirement for Year ending 31st March 1942.	(7) Estimated Requirement for Six Months ending 30th September 1942.
		(3) Total Parlia- mentary Estimate.	(4) Expendi- ture to 31st March 1941 (Approxi- mate).	(5) Revised Estimate where necessary.		
1. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London and contributions towards cost of such improvements contributions to cost of local improvements and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ —	£ 55,785	£ 5,000
2. Metropolitan Fire Brigade Act 1865 and various Acts amending or extending the same.	Provision of stations and execution of other works for the London Fire Brigade.	*	—	—	44,700	—
	Carried forward ...	...	...	...	100,485	5,000

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

THE SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1942. (6)	Estimated Requirement for Six Months ending 30th September 1942. (7)
		Total Parliamentary Estimate. (3)	Expenditure to 31st March 1941 (Approximate). (4)	Revised Estimate where necessary. (5)		
3. Metropolis Management (Thames River Prevention of Floods) Amendment Act 1879 and various Acts relating to prevention of flooding from the river Thames.	Brought forward ... Execution of flood prevention works.	£ ... *	£ ... —	£ ... —	£ 100,485 2,500	£ 5,000 —
4. Thames Tunnel (Blackwall) Acts 1887 and 1888.	Blackwall Tunnel—miscellaneous works.	*	—	—	1,125	—
5. Local Government Act 1888 and sundry Acts relating to bridges.	Demolition of Wandsworth Bridge and construction of a new bridge. Construction of new Waterloo Bridge.	*	—	—	16,685 43,990	— 10,000
6. Lunacy and Mental Treatment Acts 1890 to 1930.	Acquisition of property and provision of mental hospitals and other purposes in connection with the care of persons of unsound mind.	*	—	—	2,000	—

		*	—	—	400	—
7. Mental Deficiency Acts 1913 to 1927.	Acquisition of property provision of build- ings for accommodation of mental defec- tives and provision of equipment.	—	—	—	—	—
8. London County Council (Tramways and Im- provements) Act 1920.	Acquisition of property and execution of works in connection with widening of Cable Street.	†595,500	304,797	—	665	—
9. Education Act 1921 and Acts amending or extending the same.	Acquisition of property provision and equip- ment of schools and other purposes.	*	—	—	69,600	—
10. Poor Law Act 1930.	Acquisition of property additions and alterations to residential schools and mental and public assistance institutions and local offices.	*	—	—	14,000	60
11. London County Council (Money) Act 1930.	Repayment of local bonds for housing.	*	—	—	52,615	65,730
12. London County Council (Vauxhall Cross Improvement) Act 1931.	Acquisition of property and execution of works in connection with street improve- ments at Vauxhall Cross.	617,000	221,138	336,000	3,655	—
13. London County Council (General Powers) Act 1935.	Acquisition of property on the south bank of river Thames.	—	—	—	1,000	500
	Carried forward ...	...	...	...	308,720	81,290

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes of the same Act.

THE SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1942. (6)	Estimated Requirement for Six Months ending 30th September 1942. (7)
		Total Parlia- mentary Estimate. (3)	Expendi- ture to 31st March 1941 (Approximate). (4)	Revised Estimate where necessary. (5)		
	Brought forward	£ ...	£ ...	£ ...	£ 308,720	£ 81,290
14. Housing Act 1935.	Acquisition of property erection of dwellings advances to persons or bodies of persons and other purposes.	*	—	—	£ 281,170	£ 151,000
15. London and Middlesex (Improvements &c.) Act 1936.	Acquisition of property and execution of works in connection with extension of Cromwell-road.	1,620,000	412,828	—	24,615	15,000
16. Public Health (London) Act 1936.	Acquisition of property additions and alter- ations to hospitals pathological laborator- ies and ambulance stations.	*	—	—	65,000	800
17. Public Health (London) Act 1936 and various Acts relating to main drainage.	Provision of pumping stations outfalls machinery sewers sewage treatment plant and other purposes.	*	—	—	109,300	11,500
18. London County Council (General Powers) Act 1937.	Acquisition of property and execution of works in connection with improvements at Notting Hill-gate and Westminster Bridge- road and the Western-avenue extension between Edgware-road and Marylebone- road.	2,170,000	174,489	—	83,655	20,400

		*	—	—	290,800	52,850
19. Green Belt (London and Home Counties) Act 1938.	Contributions towards green belt scheme.					
20. London County Council (Tunnel and Improvements) Act 1938.	Acquisition of property and execution of works for the improvement of the southern approach to Wandsworth Bridge.	†3,933,250	5,400	—	5,690	—
21. London County Council (General Powers) Act 1939.	Acquisition of property and execution of works for the improvement of the south bank of the river Thames and at Millbank.	†1,702,000	—	—	9,975	—
22. London Government Act 1939.	Provision of additional office accommodation.	*	—	—	7,150	—
23. Civil Defence Acts 1937 and 1939.	Erection of air-raid shelters on housing estates and construction of emergency water supplies for fire-fighting.	*	—	—	47,580	300
24. Any other Act.	To provide for possible expenditure for purposes authorised by Parliament (whether before or at any time during the financial period) not included in the foregoing estimates for which it may be desirable that the Council should have spending power.	—	—	—	500,000	—
					1,733,655	233,140

Carried forward £1,966,795

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes of the same Act.
 ‡ In addition to the methods of raising money authorised by the principal Act the Council are empowered by virtue of section 122 of the Housing Act 1936 with the consent of the Minister of Health to raise by the issue of bonds any sums which they have power to borrow for the purposes of that Act. The money to be raised for expenditure on capital account for housing purposes during the financial period 1941-1942 will however not exceed a total of £332,170.

THE SCHEDULE—continued.

Brought forward £1,966,795

PART II.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Bodies and persons to whom money may be lent. (1)	During year ending 31st March 1942. (2)	During six months ending 30th September 1942. (3)
25. Metropolitan borough councils.	£ 1,500,000	£ 750,000
26. Governors or managers of educational institutions (including special and approved schools) committees of school treatment centres and governors or committees of voluntary hospitals and hostels.	1,000	500
27. Sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923.	1,000	500
28. Sundry persons under the Civil Defence Act 1939 section 29.	20,000	10,000
Total	†1,522,000	†761,000
		£2,283,000

† The provision for advances to persons or bodies of persons under the Housing Act 1936 is included under item 14 of this schedule.

PART III.

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PARTS I AND II
OF THIS SCHEDULE.

Purposes. (1)	During year ending 31st March 1942. (2)	During six months ending 30th September 1942. (3)
29. General enlargement of spending and lending power to provide, under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in the foregoing estimates.	£ 500,000	£ 250,000
		£750,000

Carried forward £4,999,795

THE SCHEDULE—continued.

Brought forward £4,999,795

PART IV.

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE ACT OF 1940 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1941 ARE INCLUDED AGAIN IN THIS ACT.

In order to ascertain the net aggregate new powers of expending or lending money conferred by virtue of this Act it is necessary to deduct the following sums from the sums referred to in the foregoing Parts of this schedule.

Reference to number of item in a foregoing Part of this schedule.	Purposes of expenditure or loan.	Amount (approximate).
1	Metropolis Management Act 1855 and various Acts authorising improvements and works.	£ 60,785
3	Metropolis Management (Thames River Prevention of Floods) Amendment Act 1879 &c.	2,500
4	Thames Tunnel (Blackwall) Acts 1887 and 1888.	400
5	Local Government Act 1888 and sundry Acts relating to bridges.	53,880
6	Lunacy and Mental Treatment Acts 1890 to 1930.	1,400
7	Mental Deficiency Acts 1913 to 1927.	400
8	London County Council (Tramways and Improvements) Act 1920.	665
9	Education Act 1921 &c.	69,600
10	Poor Law Act 1930.	14,060
11	London County Council (Money) Act 1930.	52,615
12	London County Council (Vauxhall Cross Improvement) Act 1931.	2,980
13	London County Council (General Powers) Act 1935.	1,500
14	Housing Act 1936.	332,170
15	London and Middlesex (Improvements &c.) Act 1936.	39,615
16	Public Health (London) Act 1936.	65,800
17	Public Health (London) Act 1936 and various Acts relating to main drainage.	120,800
18	London County Council (General Powers) Act 1937.	104,055
19	Green Belt (London and Home Counties) Act 1938.	307,750
20	London County Council (Tunnel and Improvements) Act 1938.	5,690
21	London County Council (General Powers) Act 1939.	9,975
22	London Government Act 1939.	5,810
	Carried forward	1,252,450

THE SCHEDULE—continued.

Brought forward £4,999,795

Reference to number of item in a foregoing Part of this schedule.	Purposes of expenditure or loan.	Amount (approximate).
	Brought forward	£ 1,252,450
23	Civil Defence Acts 1937 and 1939.	35,665
24	Any other Act.	75,000
25	Loans to metropolitan borough councils.	2,250,000
26	Loans to governors or managers of educational institutions &c.	1,500
27	Loans to sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923.	1,500
28	Loans to sundry persons under the Civil Defence Act 1939 section 29.	30,000
29	General enlargement of spending and lending power under Treasury sanction.	750,000
		<u>£4,396,115</u>
		<u>£4,396,115</u>

NET AGGREGATE NEW POWERS OF EXPENDITURE OR LOAN
(FOR THE PURPOSES OF WHICH THE COUNCIL MAY
RAISE MONEY BY BORROWING OR OTHERWISE).

For Council	For year ending 31st March 1942.	£ 491,750	£
	For six months ending 30th September 1942.	111,930	
			603,680
For loans	For year ending 31st March 1942.	Nil	
	For six months ending 30th September 1942.		
			<u>£603,680</u>

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